

Intake Form (for eBRAM online mediation)

1. Basic Information

Party Name: Zhi Yu Engineering Company
Company / Organization (if applicable): Same
Position / Role: Contractor
Email: alex.chan@zhiyuengineering.hk
Phone: +852 1234 5678
Preferred Contact Method: ☒ Email ☒ Phone ☐ WhatsApp ☐ Other: _____

2. Case Information

Type of Dispute:

- ☒ Commercial
- ☐ Workplace / Employment
- ☒ Contract
- ☐ Family
- ☐ Property / Tenancy
- ☐ Personal Injury
- ☐ Online Transaction
- ☐ Others: _____

Date the dispute started: During Nov 2024 – Feb 2025 project execution

3. Parties Involved

Other Party(ies) Name(s): Mr. Chan Tai Man

Their relationship to you: Client / Homeowner who engaged Zhi Yu Engineering under contract

4. Background of the Dispute

(Brief summary. What happened?)

Zhi Yu Engineering renovated the Claimant's property under a 31 October 2024 contract. The company denies breaching the agreement. It asserts that:

- delays were caused by supply chain disruptions, weather events, and client-requested changes;
- material substitutions were necessary and still met industry standards;
- additional charges stemmed from scope changes and unforeseen structural issues;
- Claimant owes HKD 660,600 in unpaid fees; total counterclaim is HKD 1,256,100.

5. Issues to Be Addressed in Mediation

(What do you think the key issues are?)

- Whether delays were excusable (weather, suppliers, client changes).
- Whether material substitutions were adequate and properly communicated.
- Legitimacy of additional costs.
- Payment dispute regarding HKD 660,600 outstanding balance.
- Respondent's counterclaim of HKD 1,256,100.

6. Your Goals and Interests

What do you hope to achieve through mediation?

- ☒ Settlement
- ☐ Apology / Understanding
- ☒ Clarify Miscommunication
- ☒ Preserve Business Relationship
- ☒ Avoid Litigation
- ☐ Other: _____

Explain your goals or desired outcome:

Resolution acknowledging justified delays and variations; recovery of outstanding contract balance and extra costs (HKD 1,256,100); and closure without further arbitration.

7. Previous Attempts to Resolve

Have you already tried to resolve the dispute?

☒ Yes

☐ No

If yes, what was attempted and what happened?

Contractor communicated delay notices, supplier emails, weather warnings, and updates about scope changes. Parties exchanged emails/WhatsApp messages but failed to reach agreement.

8. Documents or Evidence

Will you provide documents to support your case?

☒ Yes

☐ No

Examples: contracts, emails, invoices, timeline, photos, reports.

List documents (if any):

- Signed contract
- Supplier delay notices
- Weather warnings (HKO)
- Change order / correspondence records
- Photos of completed work
- Independent quality inspection report
- Statement of Defense

9. Potential Barriers to Mediation

Are there any concerns the mediator should be aware of?

☒ Strong emotions

☐ Safety concerns

☐ Language barriers

☒ Need for legal advice

☐ Health / accessibility issues

☐ Scheduling difficulties

☒ Other: Disputes facts (delays, material quality, responsibility)

10. Representation

Are you represented by a lawyer?

☒ Yes

☐ No

If yes:

Lawyer Name: Ms. Linda Cheng, Cheng & Associates

Contact: +852 3388 8833 / info@chengandassociates.com

11. Confidentiality Agreement (Pre-Session)

I understand that mediation is a confidential process.

Signature: _____

Date: 5 April 2025

- End of the form -

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